

21STCV14893 21STCV14893

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C513%2C07%2F21%2F2026

Source SHA-256: c4390bcf47f84f01be827966ce8f03ead461e19ee7926af5654e47853c45e52b

Case Number: 21STCV14893 Hearing Date: July 21, 2026 Dept: 513

Superior

Court of California

County of

Los Angeles – Central District

Department 513

Nikki Lynn CHase

;

Plaintiff,

vs.

American Honda Motor Co, Inc.

;

Defendant.

Case No.:

21STCV14893

Hearing Date:

July 21, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTION

FOR ATTORNEY'S FEES, costs, and expenses

MOVING PARTY: Plaintiff Nikki Lynn Chase

RESPONDING

PARTY: No opposition

Motion for Attorney's

Fees, Costs, and Expenses

The court considered the moving papers
filed in connection with this motion. No opposition or reply was filed.

DISCUSSION

Plaintiff Nikki Lynn

Chase ("Plaintiff") moves the court for an order awarding attorney's fees, costs, and expenses pursuant to the settlement agreement between Plaintiff and defendant American Honda Motor Co., Inc. in the total amount of \$69,017.35 in fees and \$ 4,991.06 in costs and expenses.

First, the court finds

that Plaintiff is entitled to recover attorney's fees and costs from Defendant pursuant to the Song-Beverly Act and the parties' settlement. (Civ. Code, § 1794, subd. (d) ["If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action"].) ۞

Second, the court

finds that Plaintiff has established, as to the attorney's fees incurred to commence and prosecute this action and to prepare the pending fee motion, a lodestar of \$47,402.50

"[T]he fee setting

inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. . . . The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided."

(PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (internal citations omitted); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 ["To determine a reasonable attorney fee award, the trial court applies the lodestar method"].) "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State Univ. (2005) 132 Cal.App.4th 359, 396.)

The court finds that

the reasonable hourly rates for the legal staff that performed work in this action are as follows: (1) \$595 for attorneys Avelino, Baker, Littles, and McCallister, (2) \$520 for attorney Berschauer; (3) \$350 for attorneys Brown, Chandy and Ringstad; (4) \$325 for law clerk Canton; (5) \$450 for attorney Carvalho; (6) \$525 for attorney Liou; (7) \$195 for law clerks Luppino and Nguyen; (8) \$435 for attorneys Neubauer and Stoliker; (9) \$385 for attorneys Ryu and Sanaia; (10) \$875 for attorney Shahian; (11) \$360 for attorneys Theophil and Tirmizi, and (12) \$475 for attorney Whang. (Shahian Decl. ¶ 15.)

The court has considered

the billing records of Plaintiff's legal staff.

(Shahian Decl., Ex. A.) The court

finds that Plaintiff's legal staff reasonably expended a total number of 98.5 hours (10.6 hours for Avelino, 5.7 hours for Baker, 8.1 hours for Berschauer, 14.4 hours for Brown, 4.7 hours for Canton, 3.6 hours for Carvalho, 0.5 hours for Chandy, 5.6 hours for Liou, 13.6 hours for Littles, 0.1 hours for Luppino, 3.6 hours for McCallister, 10.1 hours for Neubauer, 0.1 hours for Nguyen, 1.6 hours for Ringstad, 1.8 hours for Ryu, 2.2 hours for Sanaia, 1.2 hours for Shahian, 0.6 hours for Stoliker, 5.2 hours for Theophil, 2 hours for Tirmizi, and 3.2 hours for Whang) to commence and prosecute this action and to prepare the pending

motion.

The court therefore

finds that Plaintiffs have established a lodestar figure of \$47,402.50 ((33.5 hours x Avelino, Baker, Littles, and McCallister's \$595 hourly rate = \$19,932.50) + (8.1 hours x Berschauer's \$520 hourly rate = \$4,212.00) + (16.5 hours x Brown, Chandy, and Ringstad's \$350 hourly rate = \$5,775.00) + (4.7 hours x Canton's \$325 hourly rate = \$1,527.50) + (3.6 hours x Carvalho's \$450 hourly rate = \$1,620.00) + (5.6 hours x Liou's \$525 hourly rate = \$2,940.00) + (0.2 hours x Luppino and Nguyen's \$195 hourly rate = \$39.00) + (10.7 hours x Neubauer and Stoliker's \$435 hourly rate = \$4,654.50) + (4.0 hours x Ryu and Sanaia's \$385 hourly rate = \$1,540.00) + (1.2 hours x Shahian's \$875 hourly rate = \$1,050) + (7.2 hours x Theophil and Tirmizi's \$360 hourly rate \$2,592.00) + (3.2 hours x Whang's \$475 hourly rate = \$1,520.00.)

Third, after considering

the factors the court may consider in determining whether to adjust the lodestar, the court finds that the lodestar figure should not be adjusted by applying a multiplier. (Shahian Decl. ¶ 20-24; Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 248 [setting forth factors delineated by the Supreme Court that the trial court may consider in adjusting the lodestar].)

Fourth, because

no opposition to this motion has been filed and thus no reply is required, court finds that a reasonable award of fees for attending the hearing on this motion is \$875, reduced from the request for \$4,000 in anticipated fees. (Shahian Decl. ¶¶ 26-27.)

Fifth, the court finds

that Plaintiff is entitled to recover costs and Plaintiff's counsel has shown that they incurred costs to commence and prosecute this action in the total amount of \$4,991.06. (Civ. Code, § 1794, subd. (d); Shahian Decl., Ex. 1 PDF page 40.)

ORDER

The court grants

plaintiff Nikki Lynn Chase's motion for attorney's fees, costs, and expenses in part as follows:

Pursuant to Civil

Code section 1794, subdivision (d), the court orders that plaintiff Nikki Lynn Chase shall recover from defendant American Honda Motor Co, Inc. attorney's fees in the total amount of \$48,277.50 and costs in the amount of \$4,991.06.

The court orders plaintiff

Nikki Lynn Chase to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 21, 2026

Robert B. Broadbelt III

Judge of the Superior Court